

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-17

**BAKERLY, LLC
COMPLAINANT,

v.

SEAFRIGO USA INC.,

RESPONDENT.**

**DECLARATION OF BRENDAN COLLINS
IN SUPPORT OF REPLY BRIEF OF SEAFRIGO**

I, Brendan Collins, hereby certify and state as follows:

1. I am an attorney at GKG Law, P.C., and counsel of record for Respondent Respondent Seafrigo USA Inc. (“Seafrigo”). I submit this Declaration in Support of Seafrigo’s Reply Brief.

2. Bakerly suggests that the evidence presented by Seafrigo should be ignored because it was produced untimely. There is no legitimate basis for such an assertion.

3. The parties discussed and mutually agreed to extending time for document production until April 14, 2023. *See* March 28, 2023 referencing until the 14th, Exhibit 61. The parties also discussed that given the large number of files in dispute, the cost of discovery would outweigh the benefit of litigation regarding invoices of \$2,500 or less which invoices totaled a relatively small amount of over 2 million dollars in dispute. Ultimately, Bakerly decided that it wanted to litigate over all of the invoices in dispute.

4. On March 28, 2023, Bakerly stated that while it now believed it would be able to meet the existing discovery deadline of April 3, 2023, it reaffirmed the extra time given for Seafrigo to produce documents. Exhibit 62. (It did, however, request that Seafrigo produce its documents as soon as possible given the briefing deadline (which subsequently was extended by 5 days for Bakerly).)

5. On April 4, 2023, consistent with the parties' agreement, Seafrigo produced a lengthy spreadsheet and 1,061 separate documents (which included over 2,000 pages) in response to Bakerly's Second Set of Document Requests and Interrogatories. Seafrigo, however, continued to search for documentation related to the smaller invoices after April 4th. Ultimately, Seafrigo did produce a revised spreadsheet and a small number of additional documents in that regard.

6. A new spreadsheet primarily reflecting charges related to the smaller invoices (less than \$2,500) was subsequently produced.

I hereby declare under penalty of perjury that the foregoing is true and correct.

Dated May 31, 2023


Brendan Collins